



File No.: EXP202300251

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On May 3, 2022, the Director of the Spanish Agency for Data Protection issued a resolution in file number EXP202103033, followed against A.A.A. (hereinafter, the respondent). In this resolution, in addition to imposing two fines, the following measures were required:

“THIRD: ORDER Ms. A.A.A. with NIF ***NIF.1 to, pursuant to Article 58.2.d) of the GDPR, within ten days, adopt the following measures:

- provide the images observed with the devices in question, indicating on a situational plan the parts corresponding to her private property.
- prove that she has proceeded to remove the cameras from the current locations, or to reorient them towards her private area.
- prove that she has placed the informative device in the monitored areas or completed the information provided therein (at a minimum, it must identify the existence of processing, the identity of the controller, and the possibility of exercising the rights provided in said provisions), locating this device in a sufficiently visible place, both in open and closed spaces.
- prove that she maintains the information referred to in the aforementioned GDPR available to the affected parties.”

SECOND: The resolution of the sanctioning procedure was notified to the respondent, in accordance with the rules established in Articles 42 and 44 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), by means of an announcement published in the Official State Gazette dated May 30, 2022, after two unsuccessful attempts at postal notification, as evidenced in the file.

In this resolution, the respondent was granted a period of ten days to adopt the imposed measures.

THIRD: After the expiration of the indicated period without any written communication having been received by this Agency regarding the measures implemented by the respondent and having received on August 26, 2022, a written communication from the complainant with entry registration number REGAGE22e00036805362, indicating that the respondent had not complied with the requirements of this Agency, a new request was made for them to prove, within ten working days, that they had adopted the appropriate corrective measures, in accordance with what was agreed in the aforementioned Resolution.

This request, sent to the address where the respondent was registered, was returned due to incorrect address on September 15, 2022, as evidenced by the acknowledgment of receipt from the postal service that is in the file.

Following the receipt of this acknowledgment, the request was sent again to the address provided by the complainant in the complaint that led to the sanctioning file EXP202103033, which was also returned by the postal service on October 13, 2022, marked as undeliverable (not collected at the office after a notice was left in the mailbox), according to the acknowledgment of receipt in the file.

On November 12, 2022, a written communication was received with entry registration number REGAGE22e00051367538 in which the complainant reported that the respondent's cameras were still oriented towards the common areas and her residence. In one of the photos sent, the mailbox appears with the postal address where the cameras are located, which completes the address returned by the municipal registry by adding the specific kilometer and the urbanization. Therefore, the request was sent to this address, resulting in it being returned to the sender by the postal service on December 12, 2022, marked as undeliverable (not collected at the office after a notice was left in the mailbox), as evidenced by the acknowledgment of receipt.

FOURTH: Despite the various attempts made by this Agency to require compliance with the resolution, the respondent has not collected any of them. Furthermore, despite the enforceability of both the

resolution of the sanctioning procedure and the imposed measures, the requirement for compliance with the resolution was notified by publishing the corresponding announcement in the BOE dated February 7, 2023. The respondent has not sent any response to this Agency that proves compliance with the imposed measures.

FIFTH: Against the aforementioned resolution, which requires the adoption of measures, no ordinary administrative appeal can be made due to the expiration of the established deadlines for it. Furthermore, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record that such an appeal has been filed or that a precautionary suspension of the resolution has been requested.

SIXTH: On February 24, 2023, the Director of the Spanish Agency for Data Protection decided to initiate a sanctioning procedure against the respondent, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 58.2 of the GDPR, classified in Article 83.6 of the GDPR Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR).

SEVENTH: The aforementioned initiation agreement was received by the respondent on March 15, 2023, as evidenced by the acknowledgment of receipt in the file.

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EIGHTH: On March 23, 2023, with entry registration number REGAGE23e00019357479, the respondent submitted a written statement of allegations regarding the initiation agreement in which they state that, on March 7, 2023, they requested the annulment of file number EXP202103033 because, as they claim, it was issued lacking the essential requirements to achieve its purpose, resulting in a violation of their rights. They add that, in light of the silence from this Agency, on March 16, they filed a motion for reconsideration requesting the annulment of the aforementioned file. On the other hand, the respondent argues that the property where they reside and where the cameras are installed was initially owned equally by their father and the claimant. Upon their father's death, a segregation was carried out, resulting in the main property being divided into two independent properties. The segregated property was acquired by the claimant and their spouse, while the remainder of the main property was acquired in joint ownership by the respondent and their siblings. In favor of the segregated property owned by the claimant (dominant estate) and over the remainder of the main property (servient estate), an easement of passage was established via the general access road. The costs of conservation, maintenance, and repair of said easement are shared 50%, obligations that, as indicated, the claimant does not fulfill, resulting in the general access gate to both the main and segregated properties being broken for quite some time, leaving the respondent's property completely unprotected due to its proximity to the main road.

The respondent continues by stating that the main property is also unprotected on the left side of the lane as it is not fenced and has several access points. They also specify that from the beginning to the end of the lane, what is on the left and right sides is part of, including the lane itself, the remainder of the main property.

The respondent concludes that, in order to ensure the safety of persons, property, and facilities, surveillance cameras were installed on the property owned by them and their siblings, directed at the general access gate to the lane (camera 1), the orchard (camera 2), and the two unprotected points on the left side of the lane (cameras 3 and 4). Camera 4 focuses on the left side at the end of the lane where there is access to the main property, coinciding with the side and entrance gate to the claimant's property, with that camera located 30 meters from the aforementioned access gate and recording only the lane and the lateral access. A view of each of the indicated cameras and a layout of their placement are attached.

The respondent notes that the cameras are connected to a CCTV recording system that operates 24 hours a day, with a motion sensor that alerts via an app on the mobile phone of the presence of

individuals. The recording system, they indicate, overwrites older recordings as the hard drive runs out of space, retaining recordings for approximately the last 20 days. Optionally, they clarify, the cameras can be programmed to emit a deterrent alarm upon activation of the motion sensor. This alarm is activated in cameras 1 and 2, that is, those focusing on the general entrance from the road and the orchard. All cameras are equipped with LED lights that, at night, when...

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the motion sensor is activated, and lights turn on to allow color visualization.

This motion sensor is activated at 10 meters from the camera.

The responding party also informs that at the general entrance and halfway down the lane beneath camera 4, there are warning signs indicating the responsible person as the husband of the responding party, a contact phone number, and a postal address and email address where rights provided in Articles 15 to 22 of the GDPR can be exercised.

Access to the APP and the CCTV recorder, it continues, is exclusively held by the previously indicated responsible person through a password that only he knows.

Additionally, it states that just below the warning sign at the entrance of the lane, there is a mailbox with his name and that of his wife, who, it says, reside at that address year-round.

Regarding the easement, the responding party communicates that it is a right of way for the claiming party to access their property from the road through theirs and not the property of the claiming party, which only has, it says, the right of way and the obligation of maintenance and repair.

The responding party states that the limitation imposed by the duty to tolerate the use of the property by the owner of the dominant estate (in this case, the access lane over which the easement was established) cannot impose an additional limitation on the remaining powers of the owner of the servient estate and, concerning the cameras, to deny the dominant estate the power to preserve the safety of the family and property of the responding party.

However, it continues, before installing the cameras, they gathered information from this Agency regarding the obligations that must be fulfilled, for which they visited the website of this Agency, the video surveillance section, and downloaded the guide. They also, it says, consulted examples listed on the website and a report on the right of way from the legal office of this Agency, which states:

Therefore, all processing of personal data must be legitimized by one of the grounds of Article 6.1 of the GDPR previously transcribed.

In this regard, and since the purpose of video surveillance is to ensure the safety of persons, property, and facilities, the legitimization from the perspective of the application of the GDPR would be provided by section e) of the transcribed Article 6.1, that is, the processing is necessary for a task carried out in the public interest.

Therefore, the processing of data would not be excluded from the scope of application of the GDPR, given that it is an area subject to a right of way, which is accessible not only by the owner of the dwelling and the persons authorized by them but also by third-party holders of the dominant estate of the easement.

Furthermore, it can also be concluded that the processing would be in accordance with the provisions of the GDPR when it aims at the legitimate purpose of preserving the property itself, as seems to be the case here.

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NINTH: On July 11, 2023, a proposal for resolution was formulated, proposing that the Director of the Spanish Agency for Data Protection sanction the accused party for an infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR, with a fine of €400.00 (four hundred euros). This

proposal for resolution was duly notified to the accused party.

TENTH: On July 24, 2023, with entry registration number REGAGE23e00050427522, the accused party submitted a written statement of allegations regarding the Proposal for resolution.

The accused party states that it filed a contentious-administrative appeal on July 13, 2023, before the National Court against the resolution of May 24, 2023, which dismissed the extraordinary appeal for review against the sanctioning resolution of case number EXP202103033.

Furthermore, the accused party indicates that, against the enforcement order derived from the aforementioned case number EXP202103033, it also filed an Economic Administrative Claim before the Central Economic Administrative Tribunal on May 15, 2023, after having obtained a payment installment plan for the imposed sanction.

Therefore, the accused party states that it must await the corresponding final resolutions from the National Court and the Central Economic Administrative Tribunal.

On the other hand, the accused party indicates that, in the present sanctioning procedure, it made the same allegations and provided the same data and evidence as in case EXP202301748, initiated by a complaint from the same claimant, in which this Agency resolved to order the filing.

The accused party argues that, with the allegations presented and the accompanying documentation, it is evident, it states, that the installed cameras are proportionate to the intended purpose, not affecting the area reserved for the privacy of the claimant or their family or close associates. It adds that the cameras are placed within its property and only focus on the lane and access points, never on the property of the claimant.

For all these reasons, the claimant requests that this Agency resolve to file the present procedure, as no administrative infringement has been substantiated, it states.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts proven in the present procedure,

PROVEN FACTS

FIRST: The resolution of the sanctioning procedure and the requirements for compliance with the measures imposed therein, indicated in the first to fourth antecedents, were notified in accordance with the provisions of Articles 42 and 44 of the LPACAP. Said resolution became firm and executable due to the passage of the deadlines provided for the filing of the appeals indicated therein.

SECOND: The accused party has not submitted any response to this Agency that substantiates compliance with the measures imposed prior to the issuance of the initiation agreement of the present sanctioning procedure.

THIRD: The notification of the initiation agreement of the present sanctioning procedure was received by the accused party on March 15, 2023.

FOURTH: The accused party has submitted allegations to the initiation agreement of this sanctioning procedure as recorded in the eighth antecedent.

FIFTH: The notification of the proposal for resolution of the present sanctioning procedure was received by the accused party on July 11, 2023.

SIXTH: The accused party has submitted allegations to the proposal for resolution of this sanctioning procedure as recorded in the tenth antecedent.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations to the initiation agreement

In response to the allegations presented by the accused entity, the following should be noted. The resolution requiring the adoption of measures, for which a response period of 10 days was granted, was notified to the accused party through an announcement published in the Official State Gazette dated May 30, 2022.

Furthermore, the adoption of corrective measures was again required, and the initiation of the sanctioning procedure was finally agreed upon on February 24, 2023, without any response having been received until that point.

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On that date, the respondent party would have demonstrated compliance with the imposed measures. Likewise, the respondent party submitted on March 7, 2023, with entry registration number REGAGE23e00014225819, a request for annulment of the resolution of file number EXP202103033, which was resolved by the Director of this Agency to be inadmissible on May 24, 2023, and was notified to the party on the same day.

Similarly, the respondent party submitted on March 16, 2023, with entry registration numbers REGAGE23e00017053484 and REGAGE23e00018393342, a request for annulment of the enforcement order that, as indicated, derived from a file that was null from its inception, which was dismissed on April 17, 2023, and was notified to the party on the same day.

In these resolutions, it was concluded that the obligation of Article 44 of the LPACAP was considered fulfilled, as the assumption of lack of notification did not occur, since both the agreement to initiate the sanctioning procedure and the sanctioning resolution were notified to the respondent party, complying with all legal requirements.

Regarding the other issues raised, related to the installation of the video surveillance system and the ownership of the land where this system is located, the evaluation of its installation or operation is not the subject of this procedure. These issues were analyzed in EXP202103033, which concluded with the determination of the infringement, and during its processing could have been raised by the respondent.

As for the measures communicated during the instruction of this procedure, this does not affect the existence of the proven facts constituting an infringement. This Agency acknowledges receipt of the same, without this declaration implying any pronouncement on the regularity or legality of the measures adopted.

Attention is drawn to the provisions of Article 5.2 of the GDPR, which establishes the principle of proactive responsibility when it states that "The data controller shall be responsible for compliance with the provisions of Article 1 and able to demonstrate it." This principle refers to the obligation that falls on the data controller not only to design, implement, and observe the appropriate legal, technical, and organizational measures so that the data processing is in accordance with the regulations but also to remain actively attentive throughout the entire lifecycle of the processing to ensure that this compliance is correct, being additionally able to demonstrate it.

III

Allegations to the Proposal for Resolution

In response to the allegations to the Proposal for Resolution of the present file submitted by the respondent party, the following should be noted.

Regarding the respondent party's assertion that it must abide by the final resolutions of the National Court and the Central Economic Administrative Court, given that at no time has the suspension of the execution of the resolution of the sanctioning procedure of file number EXP202103033 been agreed upon, we refer to Article 117 of the LPACAP, according to which the filing of any appeal, except in cases where a provision establishes otherwise, shall not suspend the execution of the contested act, except as provided in the same article. Thus, said resolution is enforceable and therefore demandable.

As for the allegations made within the framework of file number EXP202301748 that led to its filing, they do not affect the existence of the proven facts constituting the infringement from which this sanctioning procedure derives, an infringement that results from the failure to comply with an enforceable resolution in the terms provided therein (that is, the adequacy and accreditation of the ordered measures, within a specified period). The measures included in the allegations of

EXP202301748 were received in any case on April 10, 2023, that is, outside the deadlines set in the non-complied resolution and after the initiation agreement of the present sanctioning procedure was issued.

IV

Unfulfilled Obligation

In accordance with the evidence available, it is considered that the respondent party has failed to comply with the resolution of the Spanish Agency for Data Protection concerning the measures imposed on it.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement, attributable to the respondent party, for violation of Article 58.2.d) of the GDPR, which provides as follows:

"2. Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

d) to order the controller or processor to bring the processing operations into compliance with the provisions of this Regulation, when appropriate, in a specific manner and within a specified time frame;"

V

Classification and Qualification of the Infringement

This infringement is classified under Article 83.6 of the GDPR, which stipulates the following:

"Failure to comply with the resolutions of the supervisory authority pursuant to Article 58, paragraph 2, shall be sanctioned in accordance with paragraph 2 of this article with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total global annual turnover of the preceding financial year, opting for the higher amount."

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

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"m) The non-compliance with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679."

VI

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 of the GDPR.

It is noted that no mitigating or aggravating factors apply.

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 58.2 of the GDPR as classified in Article 83.6 of the GDPR. The sanction to be imposed is an administrative fine in the amount of €400.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on A.A.A., with NIF ***NIF.1, for an infringement of Article 58.2 of the GDPR, classified in Article 83.6 of the GDPR, a fine of €400.00 (FOUR HUNDRED euros).

SECOND: TO NOTIFY this resolution to A.A.A.

THIRD: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by

making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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